

HOUSE No. 1712

The Commonwealth of Massachusetts

PRESENTED BY:

Colleen M. Garry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring blood testing for a surviving drivers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1712

By Representative Garry of Dracut, a petition (accompanied by bill, House, No. 1712) of Colleen M. Garry for legislation to require blood testing for survivors of motor vehicle accidents or collisions resulting in personal injury or death. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1507 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring blood testing for a surviving drivers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 24 of chapter 90 of the General Laws, as appearing in the 2014
2 Official Edition, is hereby amended by inserting after the word “liquor”, in lines 537 and 538,
3 the following words:- or involved in any motor vehicle accident or collision resulting in personal
4 injury or death.

5 SECTION 2. Said section 24 of said chapter 90, as so appearing, is hereby further
6 amended by striking out, in line 546, the word “arrested”.

7 SECTION 3. Said section 24 of said chapter 90, as so appearing, is hereby further
8 amended by inserting after the word “liquor”, in line 548, the following words:- or during any
9 motor vehicle accident or collision resulting in personal injury or death.

SECTION 4. Said section 24 of said chapter 90, as so appearing, is hereby further amended by striking out, in line 548, the word “arrested”.

SECTION 5. Said section 24 of said chapter 90, as so appearing, is hereby further amended by striking out, in lines 552 and 553, the words “no such test or analysis shall be made and”.

SECTION 6. Said section 24 of said chapter 90, as so appearing, is hereby further amended by striking out, in line 515, the word “and”.

SECTION 7. Said section 24 of said chapter 90, as so appearing, is hereby further amended by inserting after the word “operator”, in line 593, the following words:- ; and (iv) proceed in administering the test or analysis of the person’s blood pursuant to this section.

SECTION 8. Said section 24 of said chapter 90, as so appearing, is hereby further amended by striking out, in line 599, the word “arrested”.

SECTION 9. Said section 24 of said chapter 90, as so appearing, is hereby further amended by inserting after the word “liquor”, in lines 600 and 601, the following words:- or during any motor vehicle accident or collision resulting in personal injury or death.

SECTION 10. Said section 24 of said chapter 90, as so appearing, is hereby further amended by striking out, in line 648, the word “arrested”.

SECTION 11. Said section 24 of said chapter 90, as so appearing, is hereby further amended by inserting after the word “liquor”, in line 649, the following words:- or during any motor vehicle accident or collision resulting in personal injury or death.

30 SECTION 12. Said section 24 of said chapter 90, as so appearing, is hereby further
31 amended by striking out, in lines 686, the word “arrested”.

32 SECTION 13. Said Section 24 of said chapter 90, as so appearing, is hereby further
33 amended by inserting after the word “liquor”, in line 688, the following words:- or during any
34 motor vehicle accident or collision resulting in personal injury or death.

35 SECTION 14. Said section 24 of said chapter 90, as so appearing, is hereby further
36 amended by inserting after the word “arrest”, in line 689, the following words:- or motor vehicle
37 accident or collision.

38 SECTION 15. Said section 24 of said chapter 90, as so appearing, is hereby further
39 amended by inserting after the word “liquor”, in line 712, the following words:- or during any
40 motor vehicle accident or collision resulting in personal injury or death.